

23AHCV02569 23AHCV02569

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-25
Motion: MOTION FOR ATTORNEY FEES
Source URL:
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Case Number: 23AHCV02569 Hearing Date: August 25, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JORGE JR
LOZA, et al.,

Plaintiff(s),

vs.

GENERAL
MOTORS LLC, et al.,

Defendant(s).

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CASE NO.: 23AHCv02569

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEY FEES

Dept.

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8:30

a.m.

August

25, 2026

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I.

INTRODUCTION

On November 6, 2026, plaintiff Jorge Jr Loza filed this action against defendant General Motors LLC ("Defendant"). On April 2, 2026, Plaintiff filed this motion for attorney's fees after accepting an offer made pursuant to Code of Civil Procedure § 998 ("Offer") on February 2, 2026, which resolved Plaintiff's claims related to the purchase of a new 2022 Chevrolet Tahoe.

Plaintiff seeks a fee award consisting

of \$55,215 in attorney/assistant fees, a 1.5 lodestar multiplier of \$27,105, and \$1,172.96 in costs.

On August 11, 2026, Defendant filed an opposition brief.

Plaintiff filed a reply brief on August 12, 2026.

II. DISCUSSION

Pursuant to Civil Code section 1794(d), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “The lodestar method is applicable to calculating attorney fees under section 1794, subdivision (d).” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 997.)

First, the Court considers the reasonableness of Plaintiff’s fee request. Defendant argues that Plaintiff’s counsel’s billing records are incomplete because the “summary” identifies 92.90 hours of work have been billed while there are no entries supporting 39.3 hours of work (amounting to \$23,617). Defendant argues that Plaintiff necessarily fails to show that those 39.3 hours were actually and reasonable incurred and requests the Court reduce the requested fee award by \$23,617.

On reply, Plaintiff’s counsel attaches a “corrected” breakdown to a supplemental declaration and states that the revised breakdown includes the inadvertently omitted 39.30 hours’ worth of entries without specifying which entries were omitted or why these newly-submitted entries reflect work that was actually and reasonably incurred. However, Defendant did not have the opportunity to address Plaintiff’s newly-submitted evidence in its opposition brief. Accordingly, the fee award is reduced by \$23,617.

Defendant also challenges 76.18 hours’

worth of entries that it sorts into categories including: "Pre-Filing Clerical, Internal, and Duplicative Time", "Post-Filing Clerical, Block-Billed, and Speculative Entries", "Clerical Staff 'Proofreading' Time", "Vague Client Communications", "Fee-Motion Time."

Pre-Filing Work

Defendant requests

the Court eliminate 8.3 for attorney work and 0.8 hours for work performed by staff on the grounds that the billed entries include clerical and case management work, duplicative assessments, intra-firm communications, and preparing the demand and complaint. The Court agrees with the proposed reductions and reduces the fee award by 8.3 attorney hours and 0.8 staff hours for a total of \$4,965.

Post-Filing Work

Defendant argues 6.1 hours of attorney

time should be reduced because Plaintiff's counsel was inefficient and the amount billed is excessive given the clerical and templated nature of the tasks. The Court agrees that the identified entries either appear inflated or are simply not recoverable as attorney time (such as calendaring and reserving hearing dates). A single block-billed entry for "communication" with Defendants is also too uninformative to support a fee request. Defendant's proposed reductions are accepted, and Plaintiff's fee award is reduced by \$4,270 hours.

Proofreading Time

The Court deducts \$885 dollars from

Plaintiff's counsel's fee award because counsel's legal assistant improperly billed for nearly 6 hours of proofreading.

"Client Communications"

Defendant argues that Plaintiff's

counsel excessively billed for "client communications" because there are 34 entries, billed almost monthly, while this was a standard case and required little input from Plaintiff. Even if Plaintiff needed to contribute little, Plaintiff's counsel still had a duty to communicate with Plaintiff and keep him

apprised of the case. Therefore, the requested reduction is denied.

Attorneys' Fee Motion

Plaintiff's

counsel estimates that it will take 9.8 hours to review an opposition brief, draft and prepare a reply, and prepare for and attend the hearing. This amount has not yet been "incurred" and Plaintiff's counsel did not submit any supplemental declaration with its reply brief confirming the actual amounts incurred. Therefore, the estimated 9.8 hours (\$7,000) is stricken. Counsel's billing entry of 0.1 hours to reserve a hearing date is also stricken (\$70). Additionally, the Court also notes that counsel billed 4.7 hours (\$1,505) across three timekeepers to prepare a "breakdown of expended hours", but this amount is unreasonable because it should not have taken three timekeepers to complete; the Court thus strikes the time spent by Hovanes Margarian and Armen Margarian on this task.

Plaintiff's counsel's fee award associated with their fee motion is therefore reduced by a total of \$8,575.

Lodestar

Multiplier

Plaintiff's counsel requests a lodestar multiplier of 1.5. The request for a multiplier is DENIED. Even if the case was taken on contingency, there is no evidence that the case required any exceptional skill or that it required Plaintiff's counsel to turn down other work.

Expenses

Plaintiff requests \$1,172.96 in costs and expenses. Defendant challenges the cost for routine administrative filings, but most of the filings generally appear proper and reasonably incurred in the commencement and prosecution of this action. The Court only strikes the filing fees for the two requests for dismissal and the estimated filing fee for a reply brief, for a total reduction of \$54.93.

Defendant also complains that Plaintiff should not recover the cost of serving the summons and complaint, the cost to

electronically file or serve, or the cost for appearance lawyers. This argument is unpersuasive because these costs all appear reasonable.

III.

CONCLUSION

In sum, the Court grants Plaintiff's motion for attorney fees, costs, and expenses in part in the amount of \$14,021.03, consisting of \$12,903 in fees and \$1,118.03 in costs.

Dated
this 25th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.